

Gandhian Principles

- **Article 40** The establishment of village panchayats and make them powerful enough to function as a units of self-government.
- **Article 43** To promote cottage industries.
- **Article 45** State shall endeavour to provide early childhood care and education for all children until they complete the age of 6 years.
- **Article 46** The promotion of educational and economic interest of weaker sections.
- **Article 47** The prohibition of intoxicating drugs and drinks.
- **Article 48** Prevention of the slaughter of cows and other milk cattle.

Western Liberal Principles

- **Article 39** A equal opportunity for justice and free legal aid.
- **Article 43 A** Securing the participation of workers in the management of industries.
- **Article 44** A Uniform civil code.
- **Article 45** Provision for free and compulsory education for children.
- **Article 46** Promotion of educational and economic interests of Scheduled Castes, Scheduled Tribes and other weaker sections.
- **Article 47** Duty of the state to raise the level of nutrition and the standard of living and to improve public health.
- **Article 48** Organisation of agriculture and animal husbandry.
- **Article 48A** Protection and improvement of environment and safeguarding of forests and wildlife.
- **Article 49** Protection of monuments and places and objects of national importance.
- **Article 50** Separation of judiciary from executive.
- **Article 51** Promotion of international peace and security.

Difference between Fundamental Rights and Directive Principles

<i>Fundamental Rights</i>	<i>Directive Principles of State Policy</i>
The democratic political system has been established by providing the FRs.	The economic welfare of the state is established by the implementation of the DPSPs.
FRs are subject to court of law at any point of time if anybody feels that his FR are being violated.	While DPSPs are not enforceable by the court of law.
FRs can be suspended except the right mentioned in Articles 20 and 22 during emergency.	DPSP can never be suspended under any condition.
FRS are assumed negatively sometimes, because of their restrictive attitudes towards the states.	DPSP are always affirmative because they direct the states for definite activity.
The Fundamental Rights are a bit limited in its scope.	While, the scope of Directive Principle of State policy is endless. In DPSP, the political administrative, economic and subjects like international peace are also included.

FUNDAMENTAL DUTIES (ARTICLE 51 A)

- The Fundamental Duties in the Constitution serve as a reminder to the citizens that while enjoying their rights, they should also be conscious of their duties towards the country. Formed on the recommendation of Swarn Singh committee.
- They were added by 42nd Amendment Act, 1976 under Article 51 A. It contains the duties of the citizens. *They are as follow*
 - To abide by the Constitution and respect its ideals and institutions, the **National Flag** and the **National Anthem**.
 - To cherish and follow the noble ideals which inspired our national struggle for freedom.
 - To uphold and protect the sovereignty, unity and integrity of India.
 - To defend the country and render national service when called upon to do so.
 - To promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities; to renounce practices derogatory to the dignity of women.
 - To value and preserve the rich heritage of our composite culture.
 - To protect and improve the natural environment including forests, lakes, rivers and wildlife and to have compassion for living creatures.
 - To develop the scientific temper, humanism and the spirit of inquiry and reform.
 - To strive towards excellence in all spheres of individual and collective activity so that the nation constantly rise to higher level of endeavour and achievement.
 - To safeguard public property and to abjure violence.
 - For every citizen who is a parent or guardian, to provide opportunities for education to his child or as the case may be ward between the age of 6 and 14 years (86th Constitutional Amendment).

THE UNION EXECUTIVE

It deals with Union Government. It consists of the President, the Vice-President and the Council of Ministers headed by Prime Minister to aid and advise the President.

The President (Articles 52 to 78)

The President of India is the highest executive authority. The Constitution vests in him all the executive powers of Union. All executive actions are taken on his name. He is the head of the state and represents the Republic of India and he is the first citizen of India.

Qualifications

Article 58 deals with the qualification of a person to be the President of India.

- Must be a citizen of India.
- Should have completed the age of 35 years.
- Should not hold any office of profit under the government.
- He should be qualified to become a member of the Lok Sabha.

Election (Articles 54, 55 and 71)

- The President of India is not directly elected by the people, but by the members of electoral college consisting of
 - the elected members of both the Houses of Parliament.
 - the elected members of the Legislative Assemblies of the State.
 - the elected members of the Legislative Assemblies of Delhi and Puducherry.
- **Nominated members** do not take part in the election of the President.
- Election is held through the system of proportional representation by means of the single transferable vote by secret ballot. The candidate who gets minimum 50% of votes, is considered elected.
- States have different representation in the presidential election depending on the population and the number of elected members of Legislative Assembly.
- Value of vote of an MLA = $(\text{State population} \div \text{Total numbers of elected MLAs}) \times 1000$.
- Value of vote of an MP = $\text{Total value of MLAs of all states} \div \text{Total number of elected MPs (Lok Sabha and Rajya Sabha)}$.

This formula secures the uniformity between all the states on one hand and the Parliament on the other.

- Only Supreme Court enquires all disputes regarding presidential election.
- President takes oath in presence of Chief Justice of India and in his absence, the seniormost judge of Supreme Court administers oath to the President.

Term of Office and Salary

Tenure Under Article 56, the Presidents shall hold the office for 5 years. There is no limit, as to how many times a person can become President. He can give his resignation to the Vice-President before the full term completes. The President may be removed from office before the expiry of his tenure through a special procedure called Impeachment. On 11th September, 2008, the Government of India increased the salary of the President to 1.5 lakh.

Presidents of India

Name	Tenure	
	From	To
Dr Rajendra Prasad	26.01.1950	13.05.1962
Dr S Radhakrishnan	13.05.1962	13.05.1967
Dr Zakir Hussain	13.05.1967	03.05.1969
V V Giri (Vice-President)	03.05.1969	20.07.1969
Justice M Hidayatullah	20.07.1969	24.08.1969
V V Giri	24.08.1969	24.08.1974
F Ali Ahmed	24.08.1974	11.02.1977
BD Jatti	11.02.1977	25.02.1977
N Sanjeeva Reddy	25.07.1977	25.07.1982
Giani Zail Singh	25.07.1982	25.07.1987
R Venkataraman	25.07.1987	25.07.1992
Dr SD Sharma	25.07.1992	25.07.1997
KR Narayanan	25.07.1997	25.07.2002
Dr APJ Abdul Kalam	25.07.2002	25.07.2007
Mrs Pratibha Patil	25.07.2007	25.07.2012
Shri Pranab Mukherjee	25.07.2012	25.07.2017
Ram Nath Kovind	25.7.2017	Till Date

Impeachment

Article 61 The President can be impeached only on the ground of violation of the Constitution.

- The procedure for impeachment can be initiated in either house of Parliament.
- The charges are contained in a notice which has to be signed by atleast one-fourth of the total members of that houses. Notice is sent to the President before 14 days.
- Impeachment procedure is quasi-judicial in nature because after resolution to this effect is passed by the two-third majority. The other house can set-up a committee to investigate the charges against President.
- President can defend himself by taking service of Attorney General of India or any other lawyer.

Vacancy (Article 62)

- In the case of vacant seat due to any reason e.g. death, resignation or removal then the Vice-President acts as the President, if he is not available the Chief Justice of India, if not then the seniormost Judge of Supreme Court.
- The election is to be held within 6 months for the vacancy.

Powers and Functions (Article 77)

- The President has a very important role in our democracy. He has vast powers to be exercised during normal time as well as during emergency period.
- These powers however are actually exercised by the Prime Minister and the Council of Ministers.

Executive Powers of President

- He appoints Prime Minister who enjoys the support of the majority in the Lok Sabha, appoints the members for the Council of Ministers and distributes portfolios among them on the advice of the Prime Minister.
- He appoints Chief Justice and judges of Supreme Court and High Court, Chairman and Members of UPSC, CAG, Attorney General, Chief Election Commissioner and other members of Election Commission, Governors, members of Finance Commission, Ambassadors etc.
- He can seek any information relating to the administration of affairs of the Union and the proposal for legislation from the Prime Minister.

Legislative Powers

- The President of India is an integral part of the Parliament. Though legislation is the primary responsibility of Parliament.
The President has the right to influence the legislative process in following ways
 - The summoning dissolution and propagation of Lok Sabha.
 - Right of President to address and he can also summon a joint sitting of both the House of Parliament, which is presided over by the Speaker of the Lok Sabha.
 - Nomination of the members of Parliament (12 members to Rajya Sabha from amongst person having special knowledge or practical experience in literature, science, art and social services and 2 members from Anglo-Indian community in Lok Sabha).
 - Laying down some reports at the floor of the Parliament.
 - Prior consent on some bills. (e.g. Money Bill)
 - Article 123 of the Constitution empower the President to promulgate ordinances during the recess of Parliament. These ordinance have the same force and effect as and act of Parliament, but are in the nature of temporary laws.

Judicial Powers (Article 72)

President can grant pardon or reduce the sentence of any convicted person under central laws.

Various Pardoning Power of the President (Article 72)

Pardon It removes both the sentences and the conviction and completely absolves the offender from all punishments and disqualifications.

Reprieve It means a stay of execution of sentence pending a processing pro pardon or commutation.

Remission The power of remission reduces the amount of sentence without changing its character. e.g. a sentence of rigorous imprisonment for two years may be remitted to rigorous imprisonment for 1 year.

Respite The power to grant respite means awarding a lesser sentence instead of the prescribed penalty in view of some special facts. e.g. pregnancy of woman offender.

Commutation It merely substitutes one form of the punishment for another of a lighter character. e.g. a death sentence may be commuted to rigorous imprisonment.

Financial Powers

- All Money Bills can originate in Parliament only on the recommendation of the President.
- Appointment of Finance Commissioner every 5th year.
- Can make advances out of the Contingency Fund of India to meet any unforeseen expenditure.

Diplomatic Powers

All kinds of international treaties and agreements concluded on his behalf.

- He represents country on the international forum.
- He sends ambassadors and receives diplomats.

Military Powers (Article 53)

He is the Supreme Commander of armed forces. He appoints the chiefs of army, navy and airforce staff. He declares wars or conclude peace subject to approval of Parliament.

Emergency Powers

The President of India can proclaim emergency in three conditions after getting the written recommendation of the Cabinet, *which are as follow*

National Emergency (Article 352) arising out of war, external aggression or armed rebellion within the country.

Constitutional Emergency (Article 356) arising out of the failure of the constitutional machinery in the states. It is also known as President's Rule.

Financial Emergency (Article 360) arising out of a threat to financial stability or credit of India.

Discretionary Powers

- The President of India almost always acts on the aid and advice of the Council of Ministers except under the *following circumstances where he/she acts on his/her discretion*
 - In appointing the Prime Minister from among the contenders when no single party attains majority after elections to the Lok Sabha.

- President can refer a decision of an individual minister for the collective consideration of Council of Ministers.
- When the Houses of the Parliament do not meet regularly, the President may act in his/her discretion and summon both the Houses of the Parliament.
- While exercising a pocket veto.
- Can return the advice of the Council of Ministers once for its reconsideration.
- Can return the bill passed by the Parliament once for its reconsideration.

Veto Powers

The President enjoys three veto powers which he/she can use to deny the execution of an action recommended by Parliament. *They are as follows :*

Absolute Veto When a Bill other than a Money Bill passed by Parliament, the President may decline to give assent to the Bill altogether.

Suspensive Veto When a Bill other than a Money Bill is passed by Parliament and the President may resend the Bill to Parliament for further consideration with a message to amend certain provisions of a Bill. However, if the Parliament passes it again with or without amendment, the President is bound to give assent on it.

Pocket Veto This veto power is used when the President feels that the party in power is likely to face destablity and may disincline to assent to a Bill passed and neither communicate it to the Council of Ministers nor send it back for Parliament for reconsideration. The Bill lies in President's office for an indefinite period. In case of a Money Bill the President may assent to it or decline to do so but cannot send it back to Parliament. In case of Constitutional Amendment Bills, the President is bound to give his/her assent to it e.g. APJ Abdul Kalam with holding Office of Profit Bill.

IMPORTANT FACTS

- Presidents who died on their posts—Zakir Hussain and Fakruddin Ali Ahmed.
- Only President elected unopposed— Neelam Sanjeeva Reddy.
- President who served as Speaker of Lok Sabha before becoming President—Neelam Sanjeeva Reddy.
- Only Chief Justice who acted as President—Justice Hidayatullah.
- Only President who was elected twice—Dr Rajendra Prasad.

The Vice-President

- As per the **Article 63**, there shall be a Vice-President of India. He occupies the second highest office in the country.
- In absence or illness of the President, the Vice-President performs the functions of the President. If the President resigns or dies, the Vice-President officiates as a President, till a new President is elected.

Election

- The Vice-President is elected by an '**Electoral College**' constituted by the members of both Houses of the Parliament in accordance with the system of proportional representation by means of single transferable vote and the vote being secret.
- Nominated members also participate in the election. Supreme Court enquires all disputes regarding Vice-President election.

Qualifications

- Must be a citizen of India.
- Should have completed the age of 35 years.
- Must be eligible to become a member of Rajya Sabha.
- Must not hold any government post.

Terms and Functions

- He is elected for 5 years and can be re-elected.
- He is the ex-officio Chairman of the Rajya Sabha.
- All bills, resolution, motion can be taken in Rajya Sabha after his consent.

Removal

- The Vice-President can be removed from his office by a resolution of the Rajya Sabha passed by a majority of all the then members of the Rajya Sabha and agreed to by the House of People (Lok Sabha). Regarding Vice-President, there is no formal impeachment.
- The Vice-President may also resign from his office by writing to the President.

Vice-Presidents of India

Vice-President	Tenure
Dr Sarvapalli Radhakrishnan	1952-1962
Dr Zakir Hussain	1962-1967
Varahagiri Venkatagiri	1967-1969
Gopal Swarup Pathak	1969-1974
BD Jatti	1974-1979
Justice Mohammed Hidayatullah	1979-1984
R Venkataraman	1984-1987
Dr Shanker Dayal Sharma	1987-1992
KR Narayanan	1992-1997
Krishan Kant (Died)	1997-2002
Bhairon Singh Shekhawat	2002-2007
Mohammed Hamid Ansari	2007-2017
M. Venkaiah Naidu	2017 till date

Council of Ministers

- Council of Ministers is formed as soon as Prime Minister is sworn in. Only Prime Minister alone can constitute Council of Ministers. After 91st Amendment Act, 2003, **Article 75(1)(A)** states that, strength of Union Council of Ministers shall not be more than 15% of total strength of the Lok Sabha.
- The Council of Ministers consist of three categories of Minister namely; Cabinet Minister, Ministers of State and Deputy Ministers.
- The Council of Ministers shall be collectively responsible to the House of People. *There are three types of Ministers*
 - Cabinet Ministers** They are incharge of important portfolios. They are the real policy makers. The cabinet meetings are not attended by other ministers.
 - Minister of State** One, who hold independent charge of some ministries or are placed under a Cabinet Minister.
 - Deputy Ministers** One, who assist Cabinet Ministers and Ministers of States.
- A person can remain a minister without being a member of either house maximum upto 6 months.

The Prime Minister

- The position of Prime Minister in the Council of Minister is described as 'Primus Inter Pares' i.e. first among the equals. He is the real executive as President is nominal executive.
- The Prime Minister is the head of the Union Government. All the executive powers of the Central Government are formally vested with the President of India, but these powers are actually exercised by the Council of Ministers under the leadership of the Prime Minister.
- The Prime Minister is appointed by the President. [Article 75]
- Prime Minister allocates portfolios among the ministers and he also can drop any minister.
- The Prime Minister is the chairperson of the **Planning Commission**.
- The Prime Minister, who is not a member of Parliament has to acquire its membership within **6 months** of his appointment.
- Even a Rajya Sabha member can become a Prime Minister.

Prime Ministers of India

Name	Tenure	
	From	To
Pandit Jawaharlal Nehru	15.08.1947	27.05.1964
Gulzari Lal Nanda	27.05.1964	09.06.1964
Lal Bahadur Shastri	09.06.1964	11.01.1966
Gulzari Lal Nanda	11.01.1966	24.01.1966
Indira Gandhi	24.01.1966	24.03.1977
Morarji Desai	24.03.1977	28.07.1979
Charan Singh	28.07.1979	14.01.1980
Indira Gandhi	14.01.1980	31.10.1984
Rajiv Gandhi	31.10.1984	01.12.1989
VP Singh	21.12.1989	10.11.1990
Chandra Shekhar	10.01.1990	21.06.1991
PV Narsimha Rao	21.06.1991	16.05.1996
Atal Bihari Vajpayee	16.05.1996	01.06.1996
HD Deve Gowda	01.06.1996	21.04.1997
IK Gujral	21.04.1997	19.03.1998
Atal Bihari Vajpayee	19.03.1998	13.10.1999
Atal Bihari Vajpayee	13.10.1999	22.05.2004
Dr Manmohan Singh	22.05.2004	25.05.2014
Narendra Modi	26.5.2014	Till date

Powers and Functions

- **In Relation to the Council of Ministers** If a difference in opinion arises between the Prime Minister and any of his subordinate ministers, he can ask the minister to resign or can advise President to dismiss him.
- **In Relation of President** Regarding the appointment of important officials like Attorney General of India, CAG, Chairman of UPSC, EC, Chairman of Finance Commission, etc the Prime Minister can advice the President.
- He advises the President with regard to summoning and proroguing of the sessions of the Parliament.
- He can recommend dissolution of Lok Sabha to President at any time.

Deputy Prime Minister

There is no mention of Deputy Prime Minister in the Constitution. Deputy Prime Minister is appointed mostly due to political compulsion. Sardar Patel was the first Deputy Prime Minister during Prime Minister Nehru's time. Morarji Desai, Charan Singh, Jagjivan Ram, YB Charan, Devilal and LK Advani also worked as Deputy Prime Minister during the period of various Prime Minister's.